



Food and Nutrition Service

U.S. DEPARTMENT OF AGRICULTURE

DATE: December 5, 2025

SUBJECT: WIC Policy Memorandum #2026-1: Implementation of the Continuing Appropriations, Agriculture, Legislative Branch, Military Construction and Veterans Affairs, and Extensions Act, 2026 (P.L. 119-37), Temporary Increase to the Maximum Monthly Allowance of Fluid Milk

TO: Regional Directors
Supplemental Nutrition Division
All Regional Offices

WIC State Agency Directors
All WIC State Agencies

On November 12, 2025, President Trump signed the Continuing Appropriations, Agriculture, Legislative Branch, Military Construction and Veterans Affairs, and Extensions Act, 2026 (P.L. 119-37, the Act) into law. Section 787 of the Act directs USDA to update the maximum monthly allowance (MMA) of fluid milk for certain food packages provided in the Special Supplemental Nutrition Program for Women, Infants, and Children (WIC) Program. Under the leadership of Secretary Brooke Rollins, USDA is encouraging healthy choices, healthy outcomes, and healthy families through the timely implementation of this provision.

Changes to MMA of Fluid Milk

Per the Act, the MMA of fluid milk as defined under WIC regulations at 7 CFR 246.10(e) is updated effective immediately to reflect the following amounts for fiscal year (FY) 2026:

WIC Food Package	Temporary Milk MMA for FY 2026
Food Package III	**
Food Package IV A and B	16 quarts
Food Package V A and B	22 quarts
Food Package VI	16 quarts

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Food Package VII	24 quarts
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****Fluid milk MMA is equivalent to the food package MMA increase as authorized by the Act and corresponding to the participant category as outlined in 7 CFR 246.10(e) and 7 CFR 246.10(e)(4) through (7).**

The authority for these updated amounts terminates on September 30, 2026. Benefits issued with a first date of use in September 2026 must reflect the updated amounts. However, the time periods for transacting and redeeming the food benefits may occur after September 30, 2026, in accordance with current State agency policy and procedures. The State agency must maintain the updated MMAs of fluid milk through September 30, 2026.

Implementation of Changes

We recognize that implementation of the Special Supplemental Nutrition Program for Women, Infants, and Children (WIC): Revisions in the WIC Food Packages final rule (referred to herein as the 2024 final rule) is currently underway. The temporary changes outlined above return milk MMAs to amounts authorized prior to the 2024 final rule.

State agencies that have NOT previously completed implementation of Food Packages III – VII as outlined in the 2024 final rule and in accordance with WIC Policy Memorandum #2024-5: *Implementing the Provisions of the Special Supplemental Nutrition Program for Women, Infants, and Children (WIC): Revisions in the WIC Food Packages Final Rule* should cancel planned changes to the MMA of milk.

To the maximum extent practicable, State agencies should communicate the changes to the fluid milk MMA to their participants and vendors.

FNS is committed to working with State agencies to ensure prompt implementation of the temporary increase to MMA for fluid milk. State agencies should direct any questions related to this memorandum to their respective FNS Regional Offices.

Sara L Olson

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Director

Policy Division

Supplemental Nutrition and Safety Programs